

2021 C L C 529

[Lahore]

Before Masud Abid Naqvi and Jawad Hassan, JJ

Sheikh TAIMUR ALI MUSTAFA----Petitioner

Versus

REGISTRAR, LAHORE HIGH COURT, LAHORE and others----Respondents

Writ Petition No.71322 of 2019, heard on 17th November, 2020.

Constitution of Pakistan---

----Art.199---Constitutional jurisdiction---Scope---Establishment of High Court is not a "person" under Art.199(5) of the Constitution--- No writ or a order can be issued to the High Court or Supreme Court under Art.199 of the Constitution, as it amounts to issuance of writ against the Supreme Court and High Court itself---Administrative or executive orders passed by the Chief Justice of the High Court or the Registrar while acting under the order of Chief Justice also enjoy the protection falling within the ambit of said Article.

Muhammad Imran v. Hon'ble Peshawar High Court, Peshawar through Registrar and 2 others 2011 PLC (C.S.) 1465; Shahab Mazhar Bhalli v. Pakistan Railways through Divisional Superintendent and another 2014 PLC (C.S.) 356; Muhammad Imran v. Hon'ble Peshawar High Court, Peshawar through Registrar and 2 others 2011 PLC (C.S.) 1465 and Miss Gulnaz Baloch v. Registrar, Balochistan High Court, Quetta and others 2015 PLC (C.S.) 393 ref.

Muhammad Naeem Sadiq for Petitioner.

Haris Azmat, Maratab Ali and Kabir Ahmad Chaudhry for Respondents.

Date of hearing: 17th November, 2020.

JUDGMENT

JAWAD HASSAN, J.----Through this constitutional petition, the Petitioner has sought declaration that acts of Respondents Nos.1 to 4 in de-sealing and handing over possession of property 75-Brandreth Road, Lahore to Respondents Nos.5 and 6 under alleged implementation of judgment of learned Division Bench of this Court dated 21.02.2019, announced on 11.03.2019 passed in RSA No.39/2011 is malafide, hence the same be declared illegal and unlawful and that the said property be ordered to be sealed and attached till the decision of Cr. Misc. No.20560/2019 in Crl. Org. No.108-C/2003.

2. The grievance voiced through this Constitutional Petition is that at the time of processing the alleged false and non-maintainable application of Respondent No.5 for de-sealing the property through their report, the Respondents Nos.1 to 3 were seemed to be influenced mainly from the order of the apex Court dated 17.10.2018 passed in HRC No.69198/2018 but unfortunately none of the respondents ever perused the said order of the apex Court which was just with regard to the disposal of RSA No.39/2011, as such acting as a tool in the hands of Respondents Nos.5 and 6 on such a false application, is gross-negligence on their part in discharge of their official duties which otherwise amounts to criminal breach of trust on their part. He further argued that the Respondents Nos.1 to 3 allegedly misconstrued and mis-interpreted the orders/judgment dated 11.03.2019 with mala fide intention and de-sealed the property in dispute which otherwise was got sealed under orders of this Court dated 26.01.2004 passed in Crl. Org. No.108-C / 2003 in RSA No.58/1990. Therefore, the alleged contention of the Respondents that the property was ordered to be de-sealed in RSA No.39/2011 and not in Crl. Org. No.108-C/2003 is wholly baseless for which Crl. Misc. No.20560/2019 is pending adjudication before this Court, therefore, the alleged act of the Respondents was absolutely unjustified, illegal and without jurisdiction and need to be recalled and declared as such.

3. Arguments heard and record perused.

4. It is reflected from perusal of record that RSA No.39/2011 was decided by this Court vide judgment dated 11.03.2019, the relevant portion of which is reproduced as under:-

"Parting with the judgment, the suit property was sealed by the Bailiff of this Court vide order dated 22.03.2004, passed in connected Crl. Org. No.108-C/2003. Since instant appeal as well as Criminal Original has been decided, therefore, the aforesaid order dated 22.03.2004 is hereby recalled and the suit property is ordered to be de-sealed forthwith. "

Subsequently, the Respondent No.5 Mst. Mazhar Khanum, filed an application dated 03.07.2019, on administrative side for immediate appointment of the Bailiff. Accordingly, after due process, the said application was produced before the then Registrar of this Court, who passed the following order:-

"Please do the needful in the light of orders passed by the Hon'ble Court in RSA-39/2011 announced on 11.03.2019."

It also transpired that said Respondent No.5 also filed Crl. Misc. No.20560/2019 and prayed that a Bailiff of this Hon'ble Court may very graciously be appointed at her costs and expense for breaking open the locks of the premises sealed under orders of this Hon'ble Court dated 26.01.2004 passed in Crl. Org. No.108/2003. It is pertinent to mention here that in the said application and subsequent applications, the Respondent No.5 did not make mention that she had already moved Crl. Misc. No.20560/2019 seeking same relief which is still pending. Consequently, the then Registrar, in compliance of order passed in RSA No.39/2011, deputed a Bailiff of this Court, who de-sealed the suit property and delivered its possession to the Respondent No.5. The Respondents Nos.1 to 4 did all this in their official capacity in compliance with orders of this Court passed in RSA No.39/2011 and did not

commit any wrong. Further it was confronted to the counsel for the Petitioner that how this writ petition is maintainable against the staff/establishment of this Court but he failed to satisfy the Court. The establishment of Lahore High Court is not a person under Article 199(5) of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution"). Whatever they have done was under the dictates/orders of this Court and in their official capacity. Since the property in dispute was sealed by a Bailiff, therefore, the same ought to have been de-sealed by the same way, therefore, the Registrar while deputing a Bailiff under the orders of the Court did not commit any wrong. Further, no writ or a order can be issued to the High Court or Supreme Court under Article 199 of the Constitution, as it amounts issuance of same against the Supreme Court and High Court itself. Moreso, the administrative or executive orders passed by the Chief Justice of the High Court or the Registrar while acting under the orders of Hon'ble Chief Justice, also enjoy the protection falling within the ambit of said article. Reliance in this respect is placed upon "Muhammad Imran v. Hon'ble Peshawar High Court, Peshawar through Registrar and 2 others" (2011 PLC (C.S.) 1465), "Shahab Mazhar Bhalli v. Pakistan Railways through Divisional Superintendent and another" (2014 PLC (C.S) 356), "Muhammad Imran v. Hon'ble Peshawar High Court, Peshawar through Registrar and 2 others" (2011 PLC (C.S.) 1465), "Miss Gulnaz Baloch v. Registrar, Balochistan High Court, Quetta and others" (2015 PLC (C.S.) 393).

5. Resultantly, for what has been discussed above, the writ petition being devoid of merit is hereby dismissed.

SA/T-16/L

Petition dismissed.